

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1088
(Industry, Business and Labor Committee)
(At the request of the Insurance Commissioner)

AN ACT to amend and reenact section 26.1-01-03.3 of the North Dakota Century Code, relating to penalties for violation of the insurance title; and to provide a penalty.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. AMENDMENT. Section 26.1-01-03.3 of the North Dakota Century Code is amended and reenacted as follows:

26.1-01-03.3. Penalty for violation of title.

1. Unless otherwise provided by law, a person who violates this title is subject, after hearing by the commissioner, to payment of an administrative monetary ~~penalty~~fine of up to ten thousand dollars for each violation.
2. In addition to or in lieu of a monetary fine, the commissioner, after a hearing, may require restitution in the amount of direct financial loss be made to any person directly harmed by a violation of this title. The commissioner may not determine or adjudicate whether an obligation is owed under a policy or contract of insurance, or require a person to pay a claim or an amount claimed owed under a policy or contract of insurance.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1088.

House Vote: Yeas 76 Nays 13 Absent 5

Senate Vote: Yeas 45 Nays 1 Absent 1

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State